

Court No. - 40

Case :- WRIT - C No. - 26748 of 2023

Petitioner :- M/S Matrumal Dhannalal Oil Mill

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sanjay Kumar Dubey

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Surendra Singh-I,J.

On the request of learned counsel for the petitioner, put up as fresh on 11.09.2023.

Order Date :- 28.8.2023

Brijesh Maurya

Court No. - 40

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Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sanjay Kumar Dubey

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

Connect with Writ-C No.26027 of 2023.

Order Date :- 19.9.2023

SP/

Court No. - 40

Case :- WRIT - C No. - 26748 of 2023

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Respondent :- State of U.P. and Another

Counsel for Petitioner :- Sanjay Kumar Dubey

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Heard Sri Sanjay Kumar Dubey, learned counsel for the petitioner and Sri Alok Mishra, learned counsel for the Dhakshinanchal Vidyut Vitran Nigam Limited.

2. By means of present writ petition the petitioner has prayed for direction to the Executive Engineer, Dhakshinanchal Vidyut Vitran Nigam Limited, Electricity Distribution Division, Hathras (respondent no.2) to return the balance security money to the petitioner firm.

3. Learned counsel for the petitioner states that the petitioner firm had taken a commercial electricity service connection from the respondent department and deposited an Rs.13,04,506/- as security money on different dates. Due to financial constraint, the petitioner firm submitted an application before the respondent no.2 on 01.07.2023 for returning the remaining balance additional security money of Rs.1,52,042/-, which is still pending. He has confined his prayer only to the relief that the application dated 01.07.2023 may be considered by the respondent no.2.

4. Sri Alok Mishra, learned counsel for the respondent no. no.2 has placed reliance on Para 4.20 (h) of Electricity Supply Code, 2005, wherein full fledged mechanism is provided and in case any such application is moved as per aforesaid provision then definitely the same would be redressed by the competent authority.

5. Considering the facts and circumstances of the case, we are not inclined to keep the matter pending consideration.

6. In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case, this writ petition is disposed of finally with observation that in case the petitioner moves an appropriate application as per the aforesaid provision then definitely the same would be considered strictly in accordance with law

Order Date :- 25.9.2023 RKP